



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 33922883

Date: JAN. 15, 2025

Appeal of Nebraska Service Center Decision

Form I-601, Application for Waiver of Grounds of Inadmissibility

The Applicant, a native and citizen of the United Kingdom, has applied for an immigrant visa abroad, which requires him to show, among other things, that he is admissible to the United States or eligible for a waiver of inadmissibility. A U.S. Department of State (“DOS”) consular officer found him inadmissible under section 212(a)(2)(A)(i)(II) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1182(a)(2)(A)(i)(II), for having been convicted of controlled substance violations and under section 212(a)(2)(A)(i)(I) of the Act for convictions of crimes involving moral turpitude (CIMT). The Applicant seeks a discretionary waiver of inadmissibility under section 212(h)(1)(A), (B) of the Act.

The Director of the Nebraska Service Center denied the Applicant’s Form I-601, Application for Waiver of Grounds of Inadmissibility, as a matter of discretion, noting that there is no waiver available for the inadmissibility ground under section 212(a)(2)(A)(i)(II) of the Act arising from his multiple controlled substance violations. The Director thus concluded that no purpose would be served in adjudicating the section 212(h) waiver request to waive the Applicant’s inadmissibility under section 212(a)(2)(A)(i)(I) of the Act for CIMTs, as he would remain inadmissible for his controlled substances convictions even if such waiver were granted. This matter is now before us on appeal, which we review *de novo*. *Matter of Christo’s, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). The Applicant has the burden of proof to establish his eligibility for the benefit sought by a preponderance of the evidence. Section 291 of the Act, 8 U.S.C. § 1361; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). Upon *de novo* review, we will dismiss the appeal.

A noncitizen convicted of (or who admits having committed, or who admits committing acts which constitute the essential elements of) a violation of (or a conspiracy or attempt to violate) any law or regulation of a State, the United States, or a foreign country relating to a controlled substance, as defined at 21 U.S.C. § 802, is inadmissible. Under 21 U.S.C. § 802(6), “controlled substance” is defined as “a drug or other substance, or immediate precursor, included in schedule I, II, III, IV, or V of part B of this subchapter.” Under schedule I, “3,4-methylenedioxymethamphetamine” (MDMA or ecstasy) and marijuana (cannabis) are identified as controlled substances. *See* 21 U.S.C. § 812. A noncitizen inadmissible for a controlled substance violation may seek a discretionary waiver under section 212(h) of the Act, only if the violation is related to a single offense of simple possession of 30 grams or less of marijuana. *See, e.g., Matter of Espinoza*, 25 I&N Dec. 118, 123-25 (BIA 2009) (holding that there is no waiver available for section 212(a)(2)(A)(i)(II) inadmissibility for a controlled

substance violation unless the offense is related to a single offense of simple possession of 30 grams or less of marijuana).

Although the Applicant asserts on appeal that he is eligible for a section 212(h) waiver based on the claimed hardships to his U.S. citizen spouse and her family and submits related evidence, he does not address or mention the dispositive threshold issue of his inadmissibility and the Director's findings pertaining to it. The record reflects, and he concedes, that he was convicted in the United Kingdom for a total of five controlled substance offenses between 2003 and 2005—one MDMA possession offense and four involving marijuana possession. Further, he did not claim below or on appeal, and the record does not contain any evidence, that his controlled substance convictions were related to a single offense of simple marijuana possession of 30 grams or less. Given his MDMA and marijuana convictions, none of which qualifies for a simple possession exception, the DOS consular officer found him inadmissible under section 212(a)(2)(A)(i)(II) of the Act for controlled substance violations.

Because the Applicant is residing abroad and seeking an immigrant visa, DOS makes a final determination of admissibility and eligibility for a visa. As DOS makes the final inadmissibility determination, we may consider only whether he qualifies for a waiver of his inadmissibility.

Here, the DOS determined the Applicant inadmissible under section 212(a)(2)(A)(i)(II) of the Act based on his multiple controlled substances convictions involving marijuana and MDMA possession. As stated, there is no waiver available for the ground of inadmissibility under this section of the Act, and the Applicant does not dispute, and the record does not contain any evidence, that his controlled substance convictions were related to a single offense of simple marijuana possession of 30 grams or less. Section 212(h) of the Act. Accordingly, no purpose would be served in addressing the merits of the Applicant's section 212(h) waiver request to waive the remaining ground of inadmissibility, as he would still remain inadmissible even if the waiver request were granted.

Applicants for admission bear the burden of showing their eligibility for a waiver of inadmissibility. *Matter of Chawathe*, 25 I&N Dec. at 375; *Romero v. Garland*, 7 F.4th 838, 840-41 (9th Cir. 2021) (holding that applicant seeking admission must establish "clearly and beyond doubt" that they are entitled to be admitted and is not inadmissible). The Applicant has not met his burden of proof.

ORDER: The appeal is dismissed.